



Sony Music – Recognition Music

MN-20023

Phase 1 Determination

Acquisition may be put into effect

30 June 2026

1. Determination and statement of reasons

Notified acquisition	SMG-Three LLC (SMG-Three) and Sony Music Publishing (SMP) (together Sony Music) propose to acquire 100% of the shares of Recognition Music Group (Delaware) L.P. (Recognition Music) (together, the Parties) from funds advised and/or managed by Blackstone, Inc. (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Sony Music, acquires and commercialises music publishing rights, including performing and mechanical rights, online rights, synchronisation rights and print rights. The target, Recognition Music, holds music publishing rights.
Overlap between the parties	The Parties overlap in the supply of music publishing services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and by third parties, information from prior and current other matters and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The merged firm would continue to face competition from alternative suppliers of music publishing services in Australia and globally including Universal Music, Warner Music and BMG, amongst others. • Post-acquisition, Sony is unlikely to have the ability and incentive to bundle or tie its supply of artist and repertoire services to its supply of music publishing services with the effect of substantially lessening competition or foreclose rivals' access to music in the movie and gaming industries as it will continue to face competition from the other suppliers, as mentioned above.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are

	dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**